



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2023: land divisions; disclosure affidavit; recording

GRIFFIN FLOOR AMENDMENT

1. Expands the information required in an affidavit of disclosure to include whether the property is or is not located in a basin or subbasin from which groundwater may be transported away. (Sec. 1)

GRIFFIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2023
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 33-422, Arizona Revised Statutes, is amended to
3 read:

4 33-422. Land divisions; recording; disclosure affidavit

5 A. A seller of five or fewer parcels of land, other than subdivided
6 land, in an unincorporated area of a county and any subsequent seller of
7 ~~such a~~ ANY parcel THAT IS THE SUBJECT OF AN AFFIDAVIT RECORDED AS
8 PRESCRIBED BY THIS SECTION shall complete and furnish a written affidavit
9 of disclosure to the buyer at least seven days before the transfer of the
10 property and the buyer shall acknowledge receipt of the affidavit.

11 B. The affidavit must be written in twelve-point type.

12 C. A release or waiver of a seller's liability arising out of any
13 omission or misrepresentation contained in an affidavit of disclosure is
14 not valid or binding on the buyer.

15 D. The buyer has the right to rescind the sales transaction for a
16 period of five days after the affidavit of disclosure is furnished to the
17 buyer.

18 E. The seller OR, ON THE REQUEST, DIRECTION OR INSTRUCTION OF THE
19 SELLER, THE ESCROW AGENT FOR THE TRANSACTION WHO IS LICENSED PURSUANT TO
20 TITLE 6, CHAPTER 7 shall record the executed affidavit of disclosure at
21 the same time that the deed is recorded. The county recorder is not
22 required to verify the accuracy of any statement in the affidavit of
23 disclosure. A subsequently recorded affidavit supersedes any previous
24 affidavit AND THE SUBSEQUENT SELLER OR, ON THE REQUEST, DIRECTION OR
25 INSTRUCTION OF THE SUBSEQUENT SELLER, THE ESCROW AGENT FOR THE SUBSEQUENT
26 TRANSACTION WHO IS LICENSED PURSUANT TO TITLE 6, CHAPTER 7 SHALL RECORD
27 THE SUBSEQUENTLY EXECUTED AFFIDAVIT PRESCRIBED BY THIS SECTION. A LICENSED
28 ESCROW AGENT WHO RECORDS AN AFFIDAVIT PURSUANT TO THIS SUBSECTION IS NOT

1 **LIABLE FOR ANY INACCURATE INFORMATION IN THE AFFIDAVIT, INCLUDING ANY**
2 **OMISSIONS OF MATERIAL FACTS.**

3 F. The affidavit of disclosure shall contain all of the following
4 disclosures, be completed by the seller, meet the requirements of section
5 11-480 and follow substantially the following form:

6 When recorded mail to:

7 _____
8 _____
9 _____
10 _____

11 Affidavit of Disclosure
12 Pursuant to A.R.S. § 33-422

13 I, _____ (seller(s))
14 being duly sworn, hereby make this affidavit of disclosure
15 relating to the real property situated in the unincorporated
16 area of:

17 _____, County, State of Arizona, located at:

18 _____

19 and legally described as:

20 (Legal description attached hereto as exhibit "A")
21 (property).

22 1. There ☐ is ☐ is not legal access to the property, as
23 defined in A.R.S. § 11-831 ☐ unknown

24 Explain: _____
25 _____
26 _____

27 2. There ☐ is ☐ is not physical access to the property.
28 ☐ unknown

29 Explain: _____
30 _____
31 _____

32 3. There ☐ is ☐ is not a statement from a licensed
33 surveyor or engineer available stating whether the property has
34 physical access that is traversable by a two-wheel drive
35 passenger motor vehicle.

36 4. The legal and physical access to the property ☐ is ☐ is not . .
37 . . the same....☐ unknown ☐ not applicable.

38 Explain: _____
39 _____
40 _____

41 *If access to the parcel is not traversable by emergency*
42 *vehicles, the county and emergency service providers may not*
43 *be held liable for any damages resulting from the inability to*
44 *traverse the access to provide needed services.*

- 1 5. The road(s) is/are ☐ publicly maintained ☐ privately
2 maintained ☐ not maintained ☐ not applicable. If
3 applicable, there ☐ is ☐ is not a recorded road
4 maintenance agreement.
5 *If the roads are not publicly maintained, it is the*
6 *responsibility of the property owner(s) to maintain the roads*
7 *and roads that are not improved to county standards and*
8 *accepted for maintenance are not the county's responsibility.*
- 9 6. A portion or all of the property ☐ is ☐ is not
10 located in a FEMA designated regulatory floodplain. If the
11 property is in a floodplain, it may be subject to floodplain
12 regulation.
- 13 7. The property ☐ is ☐ is not subject to ☐ fissures or
14 ☐ expansive soils. ☐ unknown
15 Explain: _____
16 _____
17 _____
- 18 8. The following services are currently provided to the property:
19 ☐ water ☐ sewer ☐ electric ☐ natural gas ☐ single
20 party telephone ☐ cable television services.
- 21 9. The property ☐ is ☐ is not served by a water supply
22 that requires the transportation of water to the property. If
23 the property is served by a water supply that requires the
24 transportation of water to the property, the seller shall
25 disclose the name and contact information of the water hauler
26 or water hauling company that is currently providing the
27 transportation services to the property and the name and
28 location of the water supply from which the water is currently
29 being transported.
30 Water hauler name: _____ Phone: _____
31 Water supply: _____ Location: _____
- 32 10. The property is served by ☐ a private water company ☐ a
33 municipal water provider ☐ a private well ☐ a shared well
34 ☐ no well. If served by a shared well, the shared well ☐ is
35 ☐ is not a public water system, as defined by the safe
36 drinking water act (42 United States Code § 300f). **IF SERVED**
37 **BY A PRIVATE WELL, ☐ IS ☐ IS NOT REGISTERED WITH THE**
38 **DEPARTMENT OF WATER RESOURCES ☐ UNKNOWN. THE WELL ☐ DOES**
39 **☐ DOES NOT HAVE A PUMP COMPLETION REPORT ON FILE WITH THE**
40 **DEPARTMENT OF WATER RESOURCES ☐ UNKNOWN. WELL REGISTRATION**
41 **NUMBER: _____**
42 *Notice to buyer: If the property is served by a well, a*
43 *private water company or a municipal water provider the*
44 *Arizona department of water resources may not have made a*
45 *water supply determination. **WELLS REQUIRE MAINTENANCE. IT IS***
46 ***THE BUYER'S RESPONSIBILITY TO INSPECT A PRIVATE WELL. DUE TO***
47 ***GEOLOGIC CONDITIONS, WATER DELIVERY SYSTEMS OR WATER HAULING***

1 MAY BE REQUIRED. TRANSPORTING WATER BY WATER HAULING IS
2 ACCEPTABLE. For more information about water supply, contact
3 the water provider.

4 11. The property or the water used on the property ☐ is ☐ is not
5 the subject of a statement of claimant for the use of water in
6 a general adjudication of water rights. ☐ unknown.

7 This is a lawsuit to determine the use of and relative
8 priority of water rights. A map of adjudicated areas is
9 available at the website of the department of water resources.

10 [12. THE PROPERTY ☐ IS ☐ IS NOT LOCATED IN A BASIN OR SUBBASIN FROM
11 WHICH GROUNDWATER MAY BE TRANSPORTED AWAY PURSUANT TO TITLE 45,
12 CHAPTER 2, ARTICLE 8.1, A.R.S. IF THE PROPERTY IS LOCATED IN
13 SUCH A BASIN OR SUBBASIN, THE SELLER SHALL DISCLOSE THE BASIN
14 OR SUBBASIN THAT THE PROPERTY IS LOCATED IN:

- 15 ☐ BUTLER VALLEY GROUNDWATER BASIN.
16 ☐ MCMULLEN VALLEY GROUNDWATER BASIN.
17 ☐ HARQUAHALA IRRIGATION NON-EXPANSION AREA.
18 ☐ BIG CHINO GROUNDWATER SUBBASIN.

19 NOTICE TO BUYER: PURSUANT TO TITLE 45, CHAPTER 2, ARTICLE 8.1,
20 A.R.S., AN ELIGIBLE ENTITY LOCATED OUTSIDE OF A BASIN OR SUBBASIN
21 LISTED ABOVE MAY LAWFULLY WITHDRAW AND TRANSPORT GROUNDWATER AWAY
22 FROM SUCH A BASIN OR SUBBASIN TO THE LOCATIONS AND FOR THE PURPOSES
23 ALLOWED BY THAT ARTICLE. THE WITHDRAWAL AND TRANSPORTATION OF
24 GROUNDWATER PURSUANT TO THAT ARTICLE MAY RESULT IN DAMAGE TO
25 RESIDENTS OF SURROUNDING LANDS AND OTHER WATER USERS, WHICH THE
26 ELIGIBLE ENTITY MAY BE REQUIRED TO MITIGATE.]

27 ~~[12.]~~ [13.] The property ☐ does have ☐ does not have an
28 on-site wastewater treatment facility (i.e., standard septic or
29 alternative system to treat and dispose of wastewater).
30 ☐ unknown. If applicable: a) The property ☐ will ☐ will not
31 require installation of an on-site wastewater treatment
32 facility; b) The on-site wastewater treatment facility ☐ has
33 ☐ has not been inspected.

34 ~~[13.]~~ [14.] THE DATE THE ON-SITE WASTEWATER TREATMENT FACILITY WAS
35 LAST INSPECTED: __ (DATE) ☐ UNKNOWN.

36 ~~[14.]~~ [15.] IF THE ON-SITE WASTEWATER TREATMENT FACILITY IS A
37 STANDARD SEPTIC SYSTEM, THE DATE THE SEPTIC TANK WAS LAST
38 PUMPED: __ (DATE) ☐ UNKNOWN.

39 NOTICE TO BUYER: SEPTIC SYSTEMS ARE LAWFUL.

40 CESSPOOLS ARE UNLAWFUL.

41 A PERSON MAY NOT USE A CESSPOOL FOR SEWAGE DISPOSAL.

42 ~~13-~~ [15.] [16.] The property ☐ has been ☐ has not been
43 subject to a percolation test. ☐ unknown.

1 ~~14.~~ [16.] [17.] The property ☐ does have ☐ does not have one or
2 more solar energy devices that are ☐ leased ☐ owned.

3 *If the solar energy devices are leased, the seller shall*
4 *disclose the name and contact information of the leasing*
5 *company.*

6 *Leasing company name: _____ Phone: _____*

7 ~~15.~~ [17.] [18.] The property ☐ does have ☐ does not have one
8 or more battery energy storage devices that are ☐ leased
9 ☐ owned.

10 If the battery energy storage devices are leased, the seller
11 shall disclose the name and contact information of the leasing
12 company.

13 Leasing company name: _____ Phone: _____

14 ~~16.~~ [18.] [19.] The property ☐ does ☐ does not . . . meet
15 the minimum applicable county zoning requirements of the
16 applicable zoning designation.

17 ~~17.~~ [19.] [20.] The sale of the property ☐ does ☐ does not . . .
18 meet the requirements of A.R.S. § 11-831 and § 32-2181
19 regarding land divisions. If those requirements are not met,
20 the property owner may not be able to obtain a building
21 permit. It is unlawful pursuant to A.R.S. § 11-831, subsection
22 F and A.R.S. § 32-2181, subsection D for a person or group of
23 persons to attempt to avoid the subdivision laws of this state
24 by acting in concert to divide a parcel of land into six or
25 more lots or parcels. The county where the land division
26 occurred or the state real estate department may investigate
27 and enforce the prohibition against acting in concert to
28 unlawfully divide a parcel of land into six or more lots or
29 parcels. The seller or property owner shall disclose each of
30 the deficiencies to the buyer.

31 Explain: _____
32 _____
33 _____

34 ~~18.~~ [20.] [21.] The property ☐ is ☐ is not located in the
35 clear zone of a military airport or ancillary military
36 facility, as defined in A.R.S. § 28-8461. (Maps are available
37 at the state real estate department's website.)

38 ~~19.~~ [21.] [22.] The property ☐ is ☐ is not located in the high
39 noise or accident potential zone of a military airport or
40 ancillary military facility, as defined in A.R.S. § 28-8461.
41 (Maps are available at the state real estate department's
42 website.)

1 ~~20.~~ [22.] [23.] Notice: If the property is located within the
2 territory in the vicinity of a military airport or ancillary
3 military facility, the property is required to comply with
4 sound attenuation standards as prescribed by A.R.S. § 28-8482.
5 (Maps are available at the state real estate department's
6 website.)

7 ~~21.~~ [23.] [24.] The property ☐ is ☐ is not located under
8 military restricted airspace. ☐ unknown. (Maps are available
9 at the state real estate department's website.)

10 ~~22.~~ [24.] [25.] The property ☐ is ☐ is not located in a military
11 electronics range as defined in A.R.S. § 9-500.28 and § 11-818.
12 ☐ unknown. (Maps are available at the state real estate
13 department's website.)

14 ~~23.~~ [25.] [26.] The property ☐ is ☐ is not located within the
15 influence area of a military installation or range or Arizona
16 national guard site as defined in ~~sections~~ A.R.S. § 9-500.50
17 and § 11-818.01 (Maps are available at the state real estate
18 department website.)

19 ~~24.~~ [26.] [27.] Use of the property ☐ is ☐ is not limited in
20 any way relating to an encumbrance of title due to a lis
21 pendens, a court order or a state real estate department order
22 or a pending legal action. If the use of the property is
23 limited due to an encumbrance of title, the seller or property
24 owner shall disclose the limitations to the buyer.

25 Explain: _____

26 _____
27 _____

28 ~~[27.]~~ [28.] IF THE PROPERTY WAS SOLD PURSUANT TO A TRUSTEE'S SALE,
29 EXECUTION SALE, MORTGAGE FORECLOSURE OR BY A PERSONAL
30 REPRESENTATIVE OF AN ESTATE, THOSE SELLERS ARE EXEMPT FROM
31 PROVIDING AN AFFIDAVIT. THE BUYER SHOULD INVESTIGATE THESE
32 UNKNOWN ITEMS.

33 This affidavit of disclosure supersedes any previously
34 recorded affidavit of disclosure.

35 I certify under penalty of perjury that the information
36 contained in this affidavit is true, complete and correct
37 according to my best belief and knowledge.

38 Dated this ____ (date) ____ day of ____ (year) ____ by:

39 Seller's name (print): _____ Signature: _____

40 Seller's name (print): _____ Signature: _____

41 State of Arizona)

42) ss.

43 County of _____)

44 Subscribed and sworn before me this ____ (date) ____ day
45 of ____ (year) ____, by _____.

46 _____
47 Notary public

1 My commission expires:
2 (date)
3 Buyer(s) hereby acknowledges receipt of a copy of this
4 affidavit of disclosure this (date) day
5 of (year)
6 Buyer's name (print): Signature:
7 Buyer's name (print): Signature:
8 G. IF THE SELLER IS A TRUSTEE OF A SUBDIVISION TRUST AS DEFINED IN
9 SECTION 6-801, THE BENEFICIARY OF THE SUBDIVISION TRUST SHALL PROVIDE THE
10 DISCLOSURE AFFIDAVIT REQUIRED BY THIS SECTION.
11 ~~G.~~ H. For the purposes of this section, seller and subsequent
12 seller do not include ANY OF THE FOLLOWING:
13 1. A trustee of a deed of trust who is selling property by a
14 trustee's sale pursuant to chapter 6.1 of this title. ~~or~~
15 2. Any officer who is selling property by execution sale pursuant
16 to title 12, chapter 9 and chapter 6 of this title. ~~if the seller is a~~
17 ~~trustee of a subdivision trust as defined in section 6-801, the disclosure~~
18 ~~affidavit required by this section shall be provided by the beneficiary of~~
19 ~~the subdivision trust.~~
20 3. A PERSONAL REPRESENTATIVE ACTING ON BEHALF OF AN ESTATE THAT IS
21 SELLING THE PROPERTY.

22 Enroll and engross to conform
23 Amend title to conform

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